The chairperson, members and member-secretary are all nominated by the Central Government (Ministry of Women and Child Development). Their salaries, allowances and other service conditions are also prescribed by the Central Government.

The chairperson and members hold office for three years. However, they[3] can relinquish their office at any time by addressing their resignation to the Central Government.

Further, the Central Government can also remove the chairperson or a member from the office (before the expiry of his/her term) under the following circumstances:

1. If the individual becomes an undischarged insolvent
2. If the individual gets convicted and sentenced to imprisonment for an offence which (in the opinion of the Central Government) involves moral turpitude
3. If the individual is declared of unsound mind by a competent court
4. If the individual refuses to act or becomes incapable of acting
5. If the individual absents himself/herself from three consecutive meetings of the Commission[4]
6. If the individual has abused one's official position which (in the opinion of the Central Government) renders one's continuance in the office as detrimental to the public interest

Functions

The Commission is provided with a fourteen-point mandate.

1. To investigate and examine all matters relating to the safeguards provided for women under the Constitution and other laws
2. To present to the Central Government annually and at such other times as it may deem fit, reports upon the working of those safeguards
3. To make recommendations for the effective implementation of those safeguards for improving the conditions of women by the Union or any state
4. To review the existing provisions of the Constitution and other laws affecting women and recommend amendments to meet any inadequacies in such laws
5. To take up the cases of violation of the provisions of the Constitution and other laws relating to women with the appropriate authorities
6. To look into complaints and take *suo moto* notice of matters relating to
    1. Deprivation of women's rights
    2. Non-implementation of laws enacted to provide protection to women and also to achieve the objective of equality and development and
    3. Non-compliance of policy decisions or instructions aimed at mitigating hardships and ensuring welfare and providing relief to women